

		these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances. Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (<i>Rattagan, supra</i>, 17 Cal.5th at 40-41 [cleaned up].) Defendant has met its burden to demonstrate there is no triable issue of fact as to elements of Plaintiff’s claim, including the requirement that Defendant be in a direct transactional relationship with Plaintiff and that Defendant be aware of a defect in Plaintiffs’ vehicle that it was unwilling or unable to fix. (See <i>Santana v. FCA US, LLC</i> (2020) 56 Cal.App.5th 334, 345–46.) The Court declines to address Defendant’s arguments regarding the economic loss rule. Clerk to give notice.
12	Justice vs. Thiede 30-2023- 01355666-CU- MM-CJC	Motion for Summary Judgment/Adjudication Defendants Theodore J. Urbanski, Jr., D.D.S. and Theodore J. Urbanski, D.D.S., Inc.’s motion for summary adjudication is GRANTED as to medical battery and DENIED as to medical negligence. Summary judgment is DENIED. Plaintiff’s objections to evidence (ROA 265) are OVERRULED. Plaintiff concedes the acts constituting medical battery are attributable only to co-defendant, Craig C. Thiede, D.D.S. As to medical negligence, plaintiffs’ expert declarations of Jay Grossman, D.D.S. and Peter K. Moy, D.M.D. are sufficient to create a material dispute of fact as to whether Dr. Urbanski’s treatment fell below the standard of care and caused or contributed to decedent’s death, including being present for the November 3, 2022 procedure with the intention of participating when he knew he was on disability due to his PTSD; failing to step in, or ask if help was needed, and perform resuscitative efforts; failing to recognize when to call 911; and failing to call 911 or directing someone to call 911 by at least 8:43 a.m. (See <i>Hanson v. Grode</i> (1999) 76 Cal.App.4th 601, 607 [“When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment

		unless the plaintiff comes forward with conflicting expert evidence."]) Clerk to give notice.
13	V. LYNN HODGE, as Trustee of the PLAZA DEL SOL REAL ESTATE TRUST UNDER DECLARATION OF TRUST DATED FEBRUARY 9, 1996 AS AMENDED, a California Revocable Trust vs. OC MEDIA TOWER, L.P. 30-2021- 01227550-CU- FR-CJC	Motion for Summary Judgment/Adjudication Continued to 8/28/2026 pursuant to parties' stipulation.